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| | | Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230. A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct. Ibid. Both an express and an implied contract are identical in that they require a meeting of the minds or an agreement; they differ in the mode of proof by which they are established. Ibid.<br><br>The essential elements of a contract are: parties capable of contracting; their consent; a lawful object; and a sufficient cause or consideration. Aton Center, Inc. v. United Healthcare Ins. Co., supra, 93 Cal.App.5th at p. 1230. The vital elements of a cause of action based on contract are mutual assent (usually accomplished through the medium of an offer and acceptance) and consideration. Ibid.<br><br>Contract formation requires mutual consent, which cannot exist unless the parties agree upon the same thing in the same sense. Aton Center, Inc. v. United Healthcare Ins. Co., supra, 93 Cal.App.5th at p. 1230. Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. Ibid. The question is what the parties' objective manifestations of agreement or objective expressions of intent would lead a reasonable person to believe. Ibid.<br><br>Although plaintiffs allege that mutual assent for defendant to “fully pay for the services provided to [defendant’s plan members]” was shown by “[t]he verifications, authorizations, and communications provided by [defendant] to [plaintiffs]” (complaint, ¶ 53), defendant contends that such mutual assent |

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| | | never occurred because the parties never discussed fees or price, let alone agreed on them. In the opposition, plaintiffs contend that this does not matter because the price term is provided by law, i.e., under the Knox-Keene Act and regulations, and is the "reasonable and customary value for those services, citing Children's Hospital Cent. Cal. v. Blue Cross of California (2014) 226 Cal.App.4th 1260, 1274.<br><br>Plaintiffs' reliance on Children's Hospital Cent. Cal. v. Blue Cross of California, supra, 226 Cal.App.4th at p. 1274 is misplaced. Although the case confirms that the regulations direct a noncontracted party to pay the reasonable and customary value of their services, it states that this directive "embodies the concept of quantum meruit." The case further states:<br><br>> "Quantum meruit refers to the well-established principle that 'the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.' " [Citation.] The measure of recovery in quantum meruit is the reasonable value of the services, provided they were of direct benefit to the defendant. [Citation.] The burden is on the person making the quantum meruit claim to show the value of the services. [Citation.]<br><br>Children's Hospital Cent. Cal. v. Blue Cross of California, supra, 226 Cal.App.4th at p.1274.<br><br>The more recent case of Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan (2022) 80 Cal.App.5th 794, 810, which is cited by defendants in the moving and reply papers, is more on point. It specifically rejected the argument being made by plaintiffs here, stating: |